

26SMCV02765 26SMCV02765

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-09-28

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Case Number: 26SMCV02765 Hearing Date: September 28, 2026 Dept: 207

TENTATIVE RULING – NO. 1

DEPARTMENT

207

HEARING DATE

September 28, 2026

CASE NUMBER

26SMCV02765

MOTION

Strike Answer

MOVING PARTY

Plaintiff Alanna Zabel

OPPOSING PARTY

Defendant Co-Opportunity Market (erroneously sued as
Co-Opportunity Consumers Cooperative, Inc.)

MOTION

This case arises from allegations that Plaintiff was injured when she was unknowingly served a cup of scalding hot water.

On May 20, 2026, Plaintiff Alanna Zabel ("Plaintiff") filed suit against Defendant Co-opportunity Market "Co-opportunity Consumers Cooperative, Inc." ("Defendant") alleging four causes of action for (1) negligence; (2) premises liability; (3) negligent hiring, training, supervision, and retention; and (4) negligent infliction of emotional distress.

Plaintiff personally served Defendant with a copy of the summons and complaint on June 5, 2026, and Default was entered on July 16, 2026.

Notwithstanding, Defendant submitted an Answer on September 2, 2026, that was erroneously accepted and filed by the Clerk of the Court.

Plaintiff now moves for an order to strike Defendant's Answer. Defendant opposes the motion and Plaintiff replies.

ANALYSIS

I.

Procedural Requirements

Written notice of the motion shall be given at least sixteen (16) court days prior to the noticed hearing date. (Code Civ. Proc., § 1005, subd. (b).) Electronic service extends the time within which the responding party has to respond by an additional two (2) court days. (Code Civ. Proc., § 1010.6.)

Here, Plaintiff electronically served the instant motion on September 2, 2026 and noticed the hearing date for September 28, 2026. With Court holidays on September 7 (Labor Day) and September 25 (Native American Day), September 2 was only sixteen (16) court days prior to the noticed hearing, instead of the required eighteen (18) to account for electronic service.

Further, a party moving to strike a pleading shall meet and confer in person, by telephone, or by video conference at least five (5) days before filing a motion to strike, and the motion to strike must

be accompanied by a declaration describing compliance with the meet and confer requirement. (Code Civ. Proc., § 435.5.) Here, Plaintiff's motion does not include any such meet and confer declaration.

Therefore, the Court finds that Plaintiff's motion is procedurally defective.

II.

Substance

Notwithstanding the procedural defect, the Court may "at any time in its discretion, and upon terms it deems proper" strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code Civ. Proc., § 436, subd. (b).

Here, the Court entered default against Defendant on July 16, 2026. Accordingly, "the entry of a default terminates a defendant's rights to take any further affirmative steps in the litigation until either its default is set aside or a default judgment is entered." (Devlin v. Kearny Mesa AMC/Jeep/Renault, Inc. (1984) 155 Cal.App.3d 381, 385. Further, the entry of default "[c]uts off the defendant's right to file pleadings and motions (other than a motion to set aside default under § 473), and it also cuts off the defendant's right to notices and the service of pleadings or papers." (Bailey v. Citibank, N.A. (2021) 66 Cal.App.5th 335, 347, emphasis added.)

Therefore, the Court, on its own motion, strikes the Answer erroneously filed after the entry of default, as it was not filed in conformity with the laws of this State.

Notwithstanding, "Proceeding to judgment in the absence of a party is an extraordinary and disfavored practice in Anglo–American jurisprudence: The policy of the law is to have every litigated case tried upon its merits, and it looks with disfavor upon a party, who, regardless of the merits of the case, attempts to take advantage of the mistake, surprise, inadvertence, or neglect of his adversary." (Au-Yang v. Barton (1999) 21 Cal.4th 958, 963 [cleaned up].)

Further, “the law strongly favors trial and disposition on the merits,” and as such, any motion to set aside entry of default is to be liberally construed in favor of setting aside the default so that the case may be heard on the merits. (Minick v. City of Petaluma (2016) 3 Cal.App.5th 15, 24-25.)

As such, to prevent further burdening the Court with unnecessary motion practice, and in furtherance of the law's strong preference for disposition of cases on the merits, the Court strongly encourages the parties to meet and confer forthwith regarding a stipulation to set aside the entry of default against Defendant.

CONCLUSION AND ORDER

For the reasons stated, the Court denies Plaintiff's motion on procedural grounds, but on the Court's own motion, finding the Answer was erroneously entered after the entry of default, the Court strikes Defendant's Answer.

The Court notes that the only named Defendant has defaulted, and as such, notice of the Court's ruling may be unnecessary (see Sporn v. Home Depot USA, Inc. (2005) 126 Cal.App.4th 1294, 1301 [after default has been entered, the defaulted defendant is no longer an active party in the litigation and thus is not entitled to further notices].)

Notwithstanding, to the extent necessary, Plaintiff shall provide notice of the Court's ruling and file the notice with a proof of service forthwith.

DATED: September 28, 2026 _____/s/_____

Michael
E. Whitaker

Judge
of the Superior Court

TENTATIVE RULING – NO. 2

DEPARTMENT

207

HEARING DATE

September 28, 2026

CASE NUMBER

26SMCV02765

MOTION

Motion to Seal

MOVING PARTIES

Plaintiff Alanna Zabel

OPPOSING PARTY

none

MOTION

This case arises from allegations that Plaintiff was injured when she was unknowingly served a cup of scalding hot water.

On May 20, 2026, Plaintiff Alanna Zabel ("Plaintiff") filed suit against Defendant Co-opportunity Market "Co-opportunity Consumers Cooperative, Inc." ("Defendant") alleging four causes of action for (1) negligence; (2) premises liability; (3) negligent hiring, training, supervision, and retention; and (4) negligent infliction of emotional distress.

Plaintiff personally served Defendant with a copy of the summons and complaint on June 5, 2026, and Default was entered on July 16, 2026.

Plaintiff now moves for an order to file certain exhibits in support of her Application for Default Judgment under seal. The motion is unopposed.

LEGAL STANDARD

Unless confidentiality is required by law, court records are presumed to be open to the public, pursuant to a potent “open court” policy undergirded by the First Amendment and favoring the public nature of court proceedings. (Cal. Rules of Court, rule 2.550(c); see *NBC Subsidiary (KNBC-TV), Inc. v. Superior Court* (1999) 20 Cal.4th 1178, 1199-10.) Consequently, pleadings, motions, discovery documents, and other papers may not be filed under seal merely by stipulation of the parties; filing under seal requires a court order. (Cal. Rules of Court, rule 2.551(a); see *H.B. Fuller Co. v. Doe* (2007) 151 Cal.App.4th 879, 888.)

A sealing order must be sought by means of a motion (or application) and accompanied by a memorandum of points and authorities, as well as evidence and testimony containing facts sufficient to justify the mandatory findings required to support a sealing order. (Cal. Rules of Court, rules 2.550(d) & 2.551(b).) The proponent of the sealing order must also conditionally lodge the unredacted matter to be sealed with the court. (Cal. Rules of Court, rule 2.551(b)(4).)

To grant a motion to seal, a trial court must expressly find that: (1) an overriding interest exists that overcomes the right of public access to the record; (2) the overriding interest supports sealing the records; (3) a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) the proposed sealing is narrowly tailored; and (5) no less restrictive means exist to achieve the overriding interest. (Cal. Rules of Court, rule 2.550 (d).) “If the trial court fails to make the required findings, the order is deficient and cannot support sealing.” (*Overstock.com, Inc. v. Goldman Sachs Group, Inc.* (2014) 231 Cal.App.4th 471, 487; see also *In re Marriage of Tamir* (2021) 72 Cal.App.5th 1068, 1087 [“express findings must be made to seal records”].)

DISCUSSION

As a procedural matter, “The party requesting that a record be filed under seal must lodge it with the court under (d) when the motion or application is made, unless good cause exists for not lodging it or the record has previously been lodged under (3)(A)(i). Pending the determination of the motion or

application, the lodged record will be conditionally under seal.” (Cal. Rules of Court, rule 2.551(b)(4).)

Plaintiff requests that the Court seal Exhibits 6, 9, 10, 11, 12, 13A, 14, 16, 17, 21, and 23 and “As to Exhibits 13, 15, 22, and 24” Plaintiff requests sealing only personal addresses, telephone numbers, email addresses, signatures where appropriate, financial-account information, or other nonpublic identifying information.”

Yet, Plaintiff has lodged under seal Exhibits 6-8, 9-11, 12, 14, 16, 17, 18, 19, 20, and 23. Exhibits 13, 21, and 24 were lodged as “Unsealed/Public Exhibits.” Additionally, the Court notes that documents lodged under seal contain further redactions.

As such, Plaintiff’s motion to seal does not match the lodging, and the Court cannot properly evaluate whether the redactions Plaintiff applied are appropriate.

CONCLUSION AND ORDER

Therefore, the Court denies Plaintiff motion to seal on procedural grounds without prejudice to Plaintiff’s filing a renewed motion, if appropriate. The Court will return all lodged documents to Plaintiff to ensure the confidentiality of the records in the meantime.

The Court notes that the only named Defendant has defaulted, and as such, notice of the Court’s ruling may be unnecessary (see *Sporn v. Home Depot USA, Inc.* (2005) 126 Cal.App.4th 1294, 1301 [after default has been entered, the defaulted defendant is no longer an active party in the litigation and thus is not entitled to further notices].)

Notwithstanding, to the extent necessary, Plaintiff shall provide notice of the Court’s ruling and file the notice with a proof of service forthwith.

DATED: September 28, 2026 _____/s/_____

Michael
E. Whitaker

Judge
of the Superior Court